

HOUSE BILL No. 1379

DIGEST OF INTRODUCED BILL

Citations Affected: IC 2-5-52.5; IC 14-8-2; IC 14-25-4.5.

Synopsis: Ground water. Establishes the ground water and aquifer preservation task force to recommend water regulations to the legislative council. Creates a two year moratorium on the establishment of certain major ground water withdrawal facilities during the period beginning May 1, 2026, and ending June 30, 2028. Provides an exception to the moratorium.

Effective: Upon passage.

Campbell, Aylesworth

January 8, 2026, read first time and referred to Committee on Natural Resources.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1379

A BILL FOR AN ACT to amend the Indiana Code concerning natural and cultural resources.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 2-5-52.5 IS ADDED TO THE INDIANA CODE
- 2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
- 3 UPON PASSAGE]:
- 4 **Chapter 52.5. Ground Water and Aquifer Preservation Task**
- 5 **Force**
- 6 **Sec. 1. As used in this chapter, "task force" refers to the ground**
- 7 **water and aquifer preservation task force established by section 2**
- 8 **of this chapter.**
- 9 **Sec. 2. The ground water and aquifer preservation task force is**
- 10 **established as a temporary task force serving the general assembly.**
- 11 **Sec. 3. (a) The task force consists of the following thirteen (13)**
- 12 **members:**
- 13 **(1) The chair of the senate utilities committee appointed by**
- 14 **the president pro tempore.**
- 15 **(2) The chair of the senate natural resources committee**
- 16 **appointed by the president pro tempore.**
- 17 **(3) One (1) additional member of the senate appointed by the**



1 president pro tempore.

2 (4) The ranking minority member of the senate utilities
3 committee appointed by the minority leader of the senate.

4 (5) The ranking minority member of the senate natural
5 resources committee appointed by the minority leader of the
6 senate.

7 (6) The chair of the house utilities, energy and
8 telecommunications committee appointed by the speaker.

9 (7) The chair of the house natural resources committee
10 appointed by the speaker.

11 (8) One (1) additional member of the house of representatives
12 appointed by the speaker.

13 (9) The ranking minority member of the house utilities,
14 energy and telecommunications committee appointed by the
15 minority leader of the house of representatives.

16 (10) The ranking minority member of the house natural
17 resources committee appointed by the minority leader of the
18 house of representatives.

19 (11) One (1) member who has experience in agriculture and
20 irrigation appointed by the governor.

21 (12) One (1) member who has experience in economic
22 development appointed by the governor.

23 (13) One (1) member who has experience in water
24 conservation and ground water hydrology or hydrogeology
25 appointed by the governor.

26 (b) A member appointed under subsection (a)(11) through
27 (a)(13) may not be a member of the general assembly.

28 (c) If a vacancy occurs on the task force, the appointing
29 authority that appointed the member whose position is vacant shall
30 appoint an individual to fill the vacancy.

31 (d) An individual appointed to fill a vacancy must have the
32 qualifications that the member appointed by the appointing
33 authority possessed.

34 (e) An individual appointed to fill a vacancy serves for the
35 remainder of the term of the member the individual is appointed
36 to succeed.

37 Sec. 4. (a) Seven (7) members of the task force constitute a
38 quorum.

39 (b) The affirmative vote of a majority of the members of the
40 task force is necessary for the task force to take official action
41 other than to meet and take testimony.

42 (c) The president pro tempore shall appoint one (1) member



1 appointed under section 3(a)(1), 3(a)(2), or 3(a)(3) of this chapter
 2 to serve as a co-chair. The speaker shall appoint one (1) member
 3 appointed under section 3(a)(6), 3(a)(7), or 3(a)(8) of this chapter
 4 to serve as a co-chair. The task force shall meet at the call of the
 5 co-chairs.

6 Sec. 5. (a) The task force shall meet at least three (3) times in
 7 calendar year 2026, and at least four (4) times in calendar year
 8 2027.

9 (b) All meetings of the task force are open to the public in
 10 accordance with and subject to IC 5-14-1.5. All records of the task
 11 force are subject to the requirements of IC 5-14-3.

12 Sec. 6. The task force shall study the following issues:

13 (1) Ways to protect the public's interest against the potential
 14 for excessive removal of ground water from one (1) part of
 15 Indiana to another, including the criteria that should be
 16 considered and the processes that should be followed before
 17 large amounts of water can be moved.

18 (2) Strategies to improve ground water monitoring and to
 19 track the supply and demand for water in Indiana and how to
 20 pay for these tracking and monitoring networks.

21 (3) Whether the state should seek agreements with
 22 neighboring states to protect water resources that cross state
 23 borders.

24 (4) Whether the existing method of categorizing water users
 25 as significant or nonsignificant is sufficient or whether new
 26 categories of water users should be considered to distinguish
 27 irrigators from major ground water users of the sort
 28 associated with water intensive industries.

29 (5) How to balance conservation and stewardship of Indiana's
 30 water resources with the opportunity to market Indiana's
 31 water resources to compete for water intensive economic
 32 activity.

33 Sec. 7. The task force shall:

34 (1) develop recommendations for the legislative council
 35 concerning the issues set forth in section 6 of this chapter;

36 (2) prepare a report setting forth the task force's findings and
 37 recommendations; and

38 (3) not later than December 1, 2027, submit the report to the
 39 legislative council in an electronic format under IC 5-14-6.

40 Sec. 8. The legislative services agency shall provide staff support
 41 to the task force.

42 Sec. 9. (a) Each member of the task force who is not a state



1 employee is entitled to receive the same per diem, mileage, and
 2 travel allowances paid to individuals who serve as legislative and
 3 lay members, respectively, of interim study committees established
 4 by the legislative council.

5 (b) Each member of the task force who is a state employee is
 6 entitled to reimbursement for traveling expenses as provided under
 7 IC 4-13-1-4 and other expenses actually incurred in connection
 8 with the member's duties as provided in the state policies and
 9 procedures established by the Indiana department of
 10 administration and approved by the budget agency.

11 (c) Each member of the task force who is a member of the
 12 general assembly is entitled to receive the same per diem, mileage,
 13 and travel allowances paid to members of the general assembly
 14 serving on interim study committees established by the legislative
 15 council.

16 (d) Per diem, mileage, and travel allowances paid under this
 17 chapter shall be paid from appropriations made to the legislative
 18 council or the legislative services agency.

19 **Sec. 10. This chapter expires July 1, 2028.**

20 SECTION 2. IC 14-8-2-61.5 IS ADDED TO THE INDIANA CODE
 21 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE
 22 UPON PASSAGE]: **Sec. 61.5. "County executive", for purposes of**
 23 **IC 14-25-4.5, has the meaning set forth in IC 14-25-4.5-1.**

24 SECTION 3. IC 14-8-2-118.2 IS ADDED TO THE INDIANA
 25 CODE AS A NEW SECTION TO READ AS FOLLOWS
 26 [EFFECTIVE UPON PASSAGE]: **Sec. 118.2. "Ground water**
 27 **withdrawal facility", for purposes of IC 14-25-4.5, has the meaning**
 28 **set forth in IC 14-25-4.5-2.**

29 SECTION 4. IC 14-8-2-157.7 IS ADDED TO THE INDIANA
 30 CODE AS A NEW SECTION TO READ AS FOLLOWS
 31 [EFFECTIVE UPON PASSAGE]: **Sec. 157.7. "Major ground water**
 32 **withdrawal facility", for purposes of IC 14-25-4.5, has the meaning**
 33 **set forth in IC 14-25-4.5-3.**

34 SECTION 5. IC 14-8-2-202, AS AMENDED BY P.L.39-2018,
 35 SECTION 4, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 36 UPON PASSAGE]: **Sec. 202. (a) "Person" means, except as provided**
 37 **in subsections (b) through (i), an individual, a partnership, an**
 38 **association, a fiduciary, an executor or administrator, a limited liability**
 39 **company, or a corporation.**

40 (b) "Person", for purposes of IC 14-12-2, has the meaning set forth
 41 in IC 14-12-2-3.

42 (c) "Person", for purposes of IC 14-16, IC 14-22-28, IC 14-24,



IC 14-26-2, IC 14-28-1, and IC 14-38-2, means an individual, a partnership, an association, a fiduciary, an executor or administrator, a limited liability company, a corporation, other legal entity, the state, or an agency, a political subdivision, or another instrumentality of the state.

(d) "Person", for purposes of IC 14-12-1, IC 14-12-2, IC 14-21, IC 14-25 through IC 14-29, except as otherwise provided in this section, IC 14-33, IC 14-34, and IC 14-37, means an individual, a partnership, an association, a fiduciary, an executor or administrator, a limited liability company, a corporation, or a governmental entity.

(e) "Person", for purposes of IC 14-22-31.5, has the meaning set forth in IC 14-22-31.5-2.

(f) "Person", for purposes of IC 14-25-3, has the meaning set forth in IC 14-25-3-1.

(g) "Person", for purposes of IC 14-25-4.5, has the meaning set forth in IC 14-25-4.5-4.

~~(g)~~ **(h)** "Person", for the purposes of IC 14-25-7, has the meaning set forth in IC 14-25-7-5.

~~(h)~~ **(i)** "Person", for purposes of IC 14-34, means an individual, a partnership, a limited liability company, an association, a society, a joint stock company, a firm, a company, a corporation, or other business organization.

~~(i)~~ **(j)** "Person", for purposes of IC 14-38-1, has the meaning set forth in IC 14-38-1-2.

SECTION 6. IC 14-8-2-299.2 IS ADDED TO THE INDIANA CODE AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: **Sec. 299.2. "Wabash River basin", for purposes of IC 14-25-4.5, has the meaning set forth in IC 14-25-4.5-5.**

SECTION 7. IC 14-25-4.5 IS ADDED TO THE INDIANA CODE AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]:

Chapter 4.5. Moratorium on New Major Ground Water Withdrawal Facilities

Sec. 1. As used in this chapter, "county executive" means the board of commissioners of a county elected under IC 36-2-2-2.

Sec. 2. As used in this chapter, "ground water withdrawal facility" means a facility that meets all of the following conditions:

(1) The facility includes:

(A) one (1) well; or

(B) two (2) or more wells under common ownership or control.



(2) The well or wells described in subdivision (1) have, in the aggregate, from all sources and by all methods, the capability of withdrawing not more than nine million nine hundred ninety-nine thousand nine hundred ninety-nine (9,999,999) gallons of ground water from one (1) or more aquifers in one (1) day.

(3) Either:

(A) the facility is connected to existing pipeline facilities; or

(B) plans for the facility include the connection of the facility to pipeline facilities;

through which not more than four million nine hundred ninety-nine thousand nine hundred ninety-nine (4,999,999) gallons of ground water withdrawn by the well or wells to which subdivision (1) refers could be transported in one (1) day to a destination located at least twenty (20) miles from the well or wells.

Sec. 3. As used in this chapter, "major ground water withdrawal facility" means a facility that meets all of the following conditions:

(1) The facility includes:

(A) one (1) well; or

(B) two (2) or more wells under common ownership or control.

(2) The well or wells described in subdivision (1) have, in the aggregate, from all sources and by all methods, the capability of withdrawing at least ten million (10,000,000) gallons of ground water from one (1) or more aquifers in one (1) day.

(3) Either:

(A) the facility is connected to existing pipeline facilities; or

(B) plans for the facility include the connection of the facility to pipeline facilities;

through which at least five million (5,000,000) gallons of ground water withdrawn by the well or wells to which subdivision (1) refers could be transported in one (1) day to a destination located at least twenty (20) miles from the well or wells.

Sec. 4. As used in this chapter, "person" means any of the following:

(1) An individual.

(2) A corporation, including a body corporate and politic exercising public functions.

(3) A limited liability company, partnership, trust, or unincorporated association.



(4) The state.

(5) A unit (as defined in IC 36-1-2-23).

(6) A board, a bureau, a commission, a division, a department, an officer, an agency, an authority, or an instrumentality of the state or of a unit.

(7) Two (2) or more of the persons identified in subdivisions (1) through (6) acting in concert.

Sec. 5. As used in this chapter, "Wabash River basin" means the area in:

(1) Tippecanoe County;

(2) Warren County;

(3) Vermillion County;

(4) Fountain County;

(5) Parke County; and

(6) Montgomery County;

that is drained by the Wabash River and the tributaries of the Wabash River.

Sec. 6. Except as provided in sections 8, 9, and 10 of this chapter, a person shall not establish a major ground water withdrawal facility in the Wabash River basin during the period beginning May 1, 2026, and ending June 30, 2028.

Sec. 7. Except as provided in section 9 of this chapter, no person shall use state funding to plan the establishment of a major ground water withdrawal facility in the Wabash River basin during the period beginning May 1, 2026, and ending June 30, 2028.

Sec. 8. A county executive of a county located in the Wabash River basin may adopt an order allowing a person to establish a major ground water withdrawal facility in the county during the period beginning May 1, 2026, and ending June 30, 2028. However, if the proposed major ground water withdrawal facility will withdraw water from or transport water through two (2) or more counties, the county executive of each of these counties must adopt an order allowing the establishment of a major ground water withdrawal facility to proceed.

Sec. 9. The prohibitions in sections 6 and 7 of this chapter do not apply to an operating ground water withdrawal facility that increases its current:

(1) withdrawal; or

(2) pipeline;

capability by not more than two million (2,000,000) gallons of ground water per day.

Sec. 10. The prohibitions in sections 6 and 7 of this chapter do



1 not apply to the establishment or planning of a major ground
2 water withdrawal facility in the Wabash River basin for which a
3 contract concerning the establishment or planning of the major
4 ground water withdrawal facility was entered into before January
5 1, 2026.

6 Sec. 11. This chapter expires July 1, 2029.

7 SECTION 8. An emergency is declared for this act.

